



POLICE DEPARTMENT

August 18, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031236
Police Officer Russell Crawford	:	
Tax Registry No. 960400	:	
Manhattan Robbery Squad	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Mallika Kaushal, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he spoke discourteously to § 87(2)(b) when, in denying § 87(2)(b) request for a supervisor, Police Officer Crawford stated that his sergeant was "not coming out for this bullshit right now," without police necessity

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

2. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Police Officer Crawford conducted a retaliatory arrest of § 87(2)(b)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Police Officer Crawford arrested § 87(2)(b) without sufficient legal authority.

P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 30, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called § 87(2)(b) as a witness. Respondent testified on his own behalf. A stenographic

transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

At approximately 0130 hours on December 3, 2022, Respondent and his partner, Officer Andrew Garcia, pulled over § 87(2)(b) to issue him a summons for driving more than 80 m.p.h. on the Major Deegan Expressway. It is alleged that during the ensuing encounter, Respondent made a discourteous comment to § 87(2)(b). It also is charged that Respondent wrongfully, and for retaliatory reasons, arrested § 87(2)(b) for disorderly conduct.

The details of what transpired during the encounter were captured in the Body-Worn Camera footage of Respondent and his partner. (CCRB Exs. 1 and 2) In the footage from Respondent's camera, the officers' RMP can be seen coming to a stop behind § 87(2)(b) vehicle on the right side of the highway. There is not a full breakdown lane, so their vehicles are partially in the right lane of traffic, as cars drive past to their left. At the 1:18 mark of the video, Respondent approaches the passenger side of § 87(2)(b) vehicle. He speaks to § 87(2)(b) through the rolled-down window, requesting his license and registration. After the documents are provided, Respondent informs § 87(2)(b) that he was pulled over for driving over 80 m.p.h. on the Major Deegan. § 87(2)(b) states that his brother is a police officer, and asks for Respondent to speak with him on the phone, which Respondent declines to do. Respondent returns to his RMP to prepare the speeding summons.

After he has completed the summons, Respondent, with his partner behind him, returns to the passenger side of the vehicle. At 13:45, Respondent can be seen handing § 87(2)(b) the summons. § 87(2)(b) asks for a sergeant to come to the scene, but Respondent explains that a

supervisor would not be coming to the highway for a disputed ticket. He also provides § 87(2)(b) with the address to the precinct, and tells him, multiple times, that he is welcome to drive there to speak with a supervisor. As Respondent and his partner head back toward their RMP, § 87(2)(b) exits his vehicle and walks toward Respondent, again demanding to speak with a sergeant. Respondent first advises him to move over so that he does not get struck by a moving vehicle, then informs § 87(2)(b) several additional times, that he can speak with a supervisor at the precinct.

Despite these repeated explanations, § 87(2)(b) continues to demand that a sergeant be called to the scene, and at 15:22, Respondent states, "He's not coming out here for this bullshit right now." He again tells § 87(2)(b) that he can go to the precinct and speak with a supervisor there, but § 87(2)(b) states that he wants to hear Respondent request the sergeant over the radio. At the 15:44 mark, after Respondent tells him that he will see him back at the precinct, § 87(2)(b) steps toward Respondent, so that they are now face-to-face. Respondent asks, "Do you have a problem, sir?" and § 87(2)(b) responds, "I do." Respondent orders him to back up, and § 87(2)(b) replies that he is not backing up. Respondent asks if he wants to go to the precinct in cuffs, and § 87(2)(b) repeats, "I'm not backing up for nothing." After this refusal, Respondent instructs him to get back inside his car, but § 87(2)(b) says no. Instead, § 87(2)(b) tells Respondent to go ahead and lock him up. Respondent asks for what, and § 87(2)(b) repeats that he can go ahead and lock him up. Respondent has § 87(2)(b) turn around, and places him in handcuffs. He informs § 87(2)(b) that he is being arrested for disorderly conduct, a summonable offense. (CCRB Ex. 1)

§ 87(2)(b) testified that he was driving to visit a friend when Respondent pulled him over for allegedly speeding. According to § 87(2)(b) he was traveling at about 45-50 m.p.h.,

and was not speeding. Nevertheless, § 87(2)(b) immediately pulled over to the right shoulder of the highway and provided his license and registration to Respondent. § 87(2)(b) stated that his brother¹ was a police officer, and asked for Respondent to speak with him on the phone, which Respondent declined to do. At trial, § 87(2)(b) testified he did not know why he made the request. After Respondent handed him a ticket for speeding, § 87(2)(b) repeatedly told Respondent that he wanted to speak with a sergeant. He wished to explain to a sergeant that he was not speeding, and hoped "to clarify" the situation at the scene, rather than back at the precinct where a supervisor might be busy attending to other matters. Respondent told him that a sergeant would not come out to the scene, and started walking back toward his police vehicle.

(Tr. 23-26)

§ 87(2)(b) testified that he felt "frustrated and aggravated," and he exited his vehicle. He again requested that Respondent call a supervisor to the scene. Respondent declined to call a supervisor, and told § 87(2)(b) the address of the precinct if he wanted to pursue the matter. At some point, Respondent stated that a sergeant would not come out "for this bullshit," though § 87(2)(b) could not recall whether that comment was made while he was still inside his vehicle or after he exited. Respondent ordered him to go back inside his car, which § 87(2)(b) did not do. As they stood on the side of the road, Respondent arrested § 87(2)(b) for disorderly conduct.

§ 87(2)(b) testified that he was not disorderly, and was merely asking for a supervisor. (Tr. 27-30, 51)

According to § 87(2)(b) the disorderly conduct charge was dismissed in court; a certificate of disposition confirmed that the charge was dismissed for legal insufficiency. (CCRB Ex. 4) § 87(2)(b) who has two prior convictions for driving with a suspended license, also

¹ At trial, § 87(2)(b) clarified that it actually is his cousin who is a police officer, who is like a brother to him.

appeared in traffic court for the speeding summons. After a trial during which both he and Respondent testified, § 87(2)(b) was found guilty of speeding. § 87(2)(b) testified that he filed a lawsuit against the NYPD in connection with this incident, which was settled for about \$8,500. § 87(2)(b) also acknowledged that at the time he filed his written complaint with the CCRB, he made no mention of Respondent's use of the word "bullshit." (Tr. 31-32, 42-43, 64-66)

Respondent, who at the time of the incident was a Highway Safety Officer, testified that he observed § 87(2)(b) drive by at a high rate of speed on the Major Deegan Expressway, where the speed limit was 40 m.p.h. Respondent estimated that § 87(2)(b) was traveling at 80 m.p.h., while the reading on his handheld laser device was 81 m.p.h. Respondent drove behind § 87(2)(b) vehicle, activated his lights and sirens, and pulled the car over on the right side of the road. The location where the vehicles stopped was just past an entrance ramp's acceleration lane, and the shoulder was narrow. As such, about one quarter of § 87(2)(b) vehicle, on the driver's side, was positioned in the right lane of traffic. (Tr. 75-79)

After initiating the stop, Respondent approached § 87(2)(b) vehicle on the passenger side, away from traffic, and requested license and registration. Respondent testified that after securing the documents, he informed § 87(2)(b) that he was stopped for speeding. Respondent returned with his partner to their vehicle to prepare the speeding summons. After Respondent handed him the completed summons, § 87(2)(b) requested that a sergeant come to the scene. Respondent explained that a sergeant would not come there for a disputed ticket. He also told § 87(2)(b) that he could drive to the command, where he could speak with a supervisor, and provided the address of the precinct. Respondent testified that the sergeant was likely busy with other matters, and Respondent did not want to unnecessarily prolong their exposure time on the highway, where someone might be struck from behind by another vehicle. (Tr. 80-84)

With the expectation that the interaction was over, Respondent turned back toward his police vehicle. Respondent testified that his intention was to let § 87(2)(b) pull out first, and he would follow behind as a buffer so § 87(2)(b) vehicle could safely merge back into traffic. Instead, § 87(2)(b) emerged from his car and approached the officers on foot, repeating the same demands about having a sergeant come to the scene. Since § 87(2)(b) continued to ignore multiple instructions to drive away from the location and pursue the matter at the precinct, Respondent tried to de-escalate the situation by using stronger language, and told him that a sergeant was "not coming out for this bullshit right now." Respondent described his choice of words as a form of "verbal judo," and he insisted that he was hoping § 87(2)(b) would respond by complying with his request. His statement was not intended to be discourteous, nor did § 87(2)(b) seem to be offended by his use of the word "bullshit." (Tr. 85-86, 97-98, 101-02)

The attempt to de-escalate did not succeed, as § 87(2)(b) remained on the highway and continued to request a supervisor. Respondent, who was now facing § 87(2)(b) could not keep an eye on the traffic coming from behind, and was concerned § 87(2)(b) might be struck by a passing car. He urged § 87(2)(b) to get back inside his vehicle, but he did not listen. Respondent testified that this was not a normal occurrence: with § 87(2)(b) just a few feet from him, agitated and not listening, Respondent was on "full guard," unsure what § 87(2)(b) would do next. Respondent also was concerned about the traffic on the highway. (Tr. 86-88)

Respondent ordered § 87(2)(b) to back up, but he refused, and told the officer to arrest him. Respondent testified that he answered, "for what," because he could not believe that § 87(2)(b) really wanted to go through this over a speeding ticket. When § 87(2)(b) repeated that he was not going to back up, Respondent placed him in handcuffs. He charged § 87(2)(b) with disorderly conduct, under section 240.20(1) of the Penal Law, as reflected in the summons.

(CCRB Ex. 3) According to Respondent, it was a “dangerous situation,” for § 87(2)(b) the officers, and for the other vehicles driving by that could have crashed, and in his mind § 87(2)(b) actions constituted disorderly conduct. Respondent never testified in court with respect to this arrest, though he and § 87(2)(b) did testify in traffic court regarding the speeding summons, and § 87(2)(b) was found guilty of speeding at 80 m.p.h. (Tr. 87-89, 95-96)

Specification 1 charges Respondent with making a discourteous statement to § 87(2)(b) during their encounter. It is undisputed that while they were speaking on the side of the road, Respondent stated that his sergeant “is not coming out here for this bullshit right now.” At issue is whether that comment, under the circumstances it was made, constituted discourtesy. I find that it did not.

Preliminarily, I find that contrary to § 87(2)(b) testimony at trial, he *was* speeding at approximately 80 m.p.h., which is why Respondent pulled him over. I also find that Respondent conducted himself in a responsible, professional manner throughout their encounter. At no point did he insult § 87(2)(b). Notably, in the complaint he filed with the CCRB, § 87(2)(b) did not even mention anything about Respondent’s use of the word “bullshit.” Even so, this Court recognizes that under certain circumstances, the use of the word “bullshit” would be gratuitous and constitute discourteous language. It is important, then, to look to the context in which the word was spoken.

In a dangerous situation such as this, where Respondent found himself repeating instructions to no avail, his word choice was reasonable. Specifically, Respondent had just explained to § 87(2)(b) multiple times, that a sergeant would not be coming to the highway to deal with a disputed ticket. He also clearly and respectfully explained that § 87(2)(b) could drive to the precinct, where he would have the opportunity to speak with a supervisor about his

concerns. Respondent even repeated the address of the precinct to § 87(2)(b). Nevertheless, § 87(2)(b) continued to disregard what Respondent was saying, and repeatedly insisted on having a sergeant come to the scene. Even after Respondent started walking back to his RMP in order to depart from the location, § 87(2)(b) chose to emerge from his vehicle and approach Respondent, where he continued to make the same request for a supervisor.

Respondent credibly testified at trial that at that point, as they were dangerously standing at the side of the highway, with cars speeding by, his intention was to de-escalate the situation with the hope of safely concluding the encounter. Toward that end, he used a stronger word, "bullshit," to emphasize to § 87(2)(b) that a supervisor would not be coming to the highway for a dispute over a traffic ticket. It was Respondent's hope that § 87(2)(b) would cease repeating the same request, and they could then return to their vehicles and safely drive away from the location.

Again, this is not to say that it is acceptable for an officer to use the word "bullshit" in all citizen encounters. However, under these particular circumstances, the use of the word did not rise to the level of discourtesy. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2 charges Respondent with making a retaliatory arrest of § 87(2)(b) while Specification 3 alleges that the arrest was conducted without sufficient legal authority. Respondent arrested § 87(2)(b) for disorderly conduct for his behavior on the side of the highway during the encounter. Section 240.20(1) of the Penal Law states, "A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous or threatening behavior." Although the disorderly conduct summons was dismissed in criminal court for being legally insufficient, that decision was made without the benefit of a trial on the merits, contrary

to the case before this tribunal, where there was testimony of witnesses, and the surrounding circumstances were considered.

Counsel for the CCRB argues that § 87(2)(b) conduct did not rise to the level of disorderly conduct, since what occurred here was merely an argument between § 87(2)(b) and Respondent, and did not involve members of the public. Therefore, Respondent arrested § 87(2)(b) without sufficient legal authority (Specification 3). The CCRB also argues that in the alternative, even if the Court were to find that there was a lawful basis for the arrest, Respondent's decision to effect that arrest was still retaliatory, stemming from his frustration with § 87(2)(b) and so Respondent should be found guilty of that charge (Specification 2).

In support of its position, the CCRB emphasizes that no other vehicles pulled over during this incident, there was no crowd gathered in the immediate vicinity, and there was no public inconvenience connected to § 87(2)(b) actions. But that assessment overlooks the dangerous surrounding circumstances created by § 87(2)(b) behavior on the highway at that time. Although both vehicles were pulled over to the right, they were at the end of the merger lane and the shoulder was narrow. As such, the left quarter of their vehicles stuck out into the right lane of traffic, forcing motorists traveling at high speeds to avoid that lane, including those that were just merging onto the highway. The longer the parties remained on the scene, the greater the danger that an accident could happen, either from a motorist being distracted by the events on the right side of the road, or from a vehicle being unable to move out of the right lane in time to avoid a collision.

Mindful of these risks, Respondent repeatedly tried to end the encounter, instructing § 87(2)(b) to drive to the precinct if he wanted to pursue the matter. It was Respondent's intention to have § 87(2)(b) pull out first, and Respondent would follow right behind in his vehicle to help

facilitate § 87(2)(b) merger back into traffic. However, § 87(2)(b) paid no heed to multiple warnings, and continued to disregard what Respondent was telling him.

As Respondent and his partner were returning to their RMP, which should have ended the encounter, § 87(2)(b) escalated matters even further when he dangerously emerged from his vehicle, on the driver's side (closer to the highway traffic), and walked toward the officers. Respondent immediately urged him to move to the side for safety reasons. Rather than complying with Respondent's repeated directions to leave the scene, § 87(2)(b) became increasingly agitated and belligerent. He continued to insist on having a sergeant come to the scene, while he aggressively moved toward Respondent, positioning himself directly in front of the officer. Respondent ordered him to move back, but § 87(2)(b) defiantly refused, and he similarly disobeyed Respondent's order to go back to his vehicle. Again, these interactions were alarmingly occurring in the right lane of a highway, with cars driving by at a high rate of speed.

Under the totality of these specific circumstances, it was reasonable for Respondent to conclude that § 87(2)(b) conduct had reached the point of being a serious safety problem, both for the officers, § 87(2)(b) himself, and members of the public driving by on the highway, which in turn provided sufficient legal authority for Respondent to arrest § 87(2)(b). Additionally, the record has failed to establish that the motive for the arrest of § 87(2)(b) was retaliatory. Rather, the credible evidence demonstrated that the arrest was born out of a need to address a legitimate and immediate safety concern, created by § 87(2)(b) repeated non-compliance and aggressive, threatening behavior. Accordingly, I find Respondent Not Guilty of Specifications 2 and 3.

APPROVED
DEC 03 2020
Jessie Jesin
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Jeff S. Adler
Jeff S. Adler
Assistant Deputy Commissioner Trial



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MOHAMMAD KHALID
INTERIM CHAIR

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038

August 14, 2025

Re: PO Russell Crawford
Disciplinary Case No. 2024-30070

Commissioner Tisch:

The above-referenced case was tried on July 30, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer Russell Crawford, was charged with the following:

1. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130, while assigned to 044 PCT and on duty, in the vicinity of Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he spoke discourteously to § 87(2)(b) when, in denying § 87(2)(b) request for a supervisor, Police Officer Crawford stated that his sergeant was "not coming out for this bullshit right now," without police necessity.
AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT, PG 200-02 MISSION, VISION AND VALUES OF NYPD
2. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130, while assigned to 044 PCT and on duty, in the vicinity of Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Police Officer Crawford conducted a retaliatory arrest of § 87(2)(b)
AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT
3. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130, while assigned to 044 PCT and on duty, in the vicinity of Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, abused his authority as a member of the

New York City Police Department, in that Police Officer Crawford arrested § 87(2)(b) without sufficient legal authority.

PG 208-01, PAGE 1, PARA 3 LAW OF ARREST

CCRB has reviewed the August 6, 2023 draft decision of Assistant Deputy Commissioner-Trials (“ADCT”) Jeff S. Adler. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925(2d Dept. 1975).

The Tribunal found Respondent Police Officer (“PO”) Russell Crawford Not Guilty of Specification One (1), Two (2), and Three (3). It is respectfully requested that you reject ADCT Adler’s findings, find the Respondent Guilty of Specification One (1), Two (2), and Three (3) and accept CCRB’s recommended penalty of the forfeiture of Fifteen (20) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

EXHIBITS

CCRB Exhibits

1. PO Russell Crawford’s Body-Worn Camera Footage, Axon_Body_3_Video_2022-12-03_0121_PO_CRAWFORD.mp4 (52:40)
2. PO Andrew Garcia’s Body-Worn Camera Footage, Axon_Body_3_Video_2022-12-03_0121_PO_GARCIA.mp4 (52:31)
3. C Summons § 87(2)(b) Report
4. Certificate of Disposition (Summons Number: § 87(2)(b) (photo)
5. Authorization to Tow (photo)

Respondent Exhibits

None

Exhibits

CCRB Exhibit 1: Body-Worn Camera – PO Crawford

CCRB Exhibit 1, Officer Crawford’s Body-Worn Camera (BWC), captured the interaction, arrest and processing of § 87(2)(b) by Officer Crawford and Officer Garcia on December 3, 2022.

The BWC footage provided a complete visual for the setting and environment for the interaction. The beginning of the video shows § 87(2)(b) parked partially on the shoulder and partially on the roadway, with his vehicle mostly on the shoulder and as close to the divider as it can go. (CCRB Ex. 1, 01:20:59-21:16 | 0:55-1:12). After § 87(2)(b) arrest, the BWC provides a better, more complete view of the roadway: it shows that § 87(2)(b) and the officers’ vehicles are parked on a shoulder, that they are at the end of an entrance ramp, and that the shoulder is also ending or narrowing along with the lane. (CCRB Ex. 1, 01:38:42-01:40:14 | 18:38-20:10; 01:48:15-49:54 | 28:11-29:50). Moreover, the BWC shows that in the 17 seconds after Officer Crawford activated his lights, § 87(2)(b) pulled over as quickly as possible, in the safest place that was available to him on this roadway. (CCRB Ex. 1, 01:20:24-20:59 | 0:20-55).

The BWC footage also shows the events leading to § 87(2)(b) arrest. First, it captures the entirety of the traffic stop. (CCRB Ex. 1, 01:20:59-01:22:31 | 0:55-14:44). After § 87(2)(b) is shown to be pulled over to the side of the road, the officers approach his vehicle from the passenger side and ask for his documents. (CCRB Ex. 1, 01:20:59-01:34:48 | 0:55-2:27). § 87(2)(b) asks for the reason for the stop multiple times before receiving an answer. *Id.* Despite this, he remains calm, and he complies with providing license and registration. *Id.* Once the officers have run § 87(2)(b) information and filled out a summons back at their own vehicle, they return to the passenger side of § 87(2)(b) vehicle and PO Crawford hands § 87(2)(b) back his documents and the summons. (CCRB Ex. 1, 01:22:31-01:33:54 | 2:27-13:49). § 87(2)(b) then makes his first request for a sergeant and gets into a back and forth with PO Crawford — § 87(2)(b) repeatedly requests to speak to a sergeant and PO Crawford repeatedly responds that a sergeant will not come to the scene, that § 87(2)(b) must go to the precinct, and provides information for the precinct such as the address. (CCRB Ex. 1, 01:33:49-01:34:48 | 13:45-14:44). At no point does the BWC show PO Crawford call a sergeant. Officer Crawford eventually says that § 87(2)(b) is not going to get any more information from him and that he's done, and shortly after, leaves to go back to his car. *Id.* At this point, the vehicle stop has concluded.

Next, the BWC captures the post-stop interaction: § 87(2)(b) exiting his vehicle and approaching the officers, and his subsequent arrest. (CCRB Ex. 1, 01:34:48-36:35 | 14:44-16:30). § 87(2)(b) walks over to the officers and their vehicle at a casual pace and stops several feet away. *Id.* While he's on the roadway, he's encased by his vehicle and the police vehicle, one on either side. *Id.* Officer Crawford cautions § 87(2)(b) to watch himself so he doesn't get hit by a car but that is his one and only reference to the traffic on the road. *Id.* At no time does PO Crawford issue any commands in relation to the traffic, make any move to direct § 87(2)(b) away from traffic or over to the shoulder, where PO Garcia is standing, nor does he himself move over to the shoulder. *Id.* § 87(2)(b) asks why the officers won't call the sergeant and tells the officers he just wants to hear the sergeant confirm over the radio that he won't come to the highway. *Id.* He is refused and instead told by PO Crawford that a sergeant is "not coming out for this bullshit." *Id.* Twice during this interaction does Officer Crawford say that he is "leaving right now" and twice does he turn to leave. *Id.* But he doesn't actually leave the scene either time. Instead, the second time he chooses to escalate the situation when he steps to § 87(2)(b) and asks, "do we have a problem?" *Id.* These words only serve to heighten the exchange. And while § 87(2)(b) acknowledges that he does have a problem and refuses to back down from his asserting his request, he's not saying or doing anything that could be considered violent or threatening. *Id.* PO Crawford seems to agree at this point because when § 87(2)(b) says, "you can lock me up, go ahead," the Officer's immediate, knee jerk response is to say, "for what?" *Id.* It's only when § 87(2)(b) repeats himself that for the first time PO Crawford makes any move to arrest him. *Id.* As the officers cuff § 87(2)(b) he asks if it's disorderly conduct to ask for a sergeant — neither officer responds. *Id.*

Last, the BWC captures what happens post-arrest. (CCRB Ex. 1, 01:36:35-02:12:44 | 16:30-52:40). The BWC shows that while still on scene, at no point does PO Crawford try to make alternative arrangements for § 87(2)(b) vehicle, immediately requesting a tow. (CCRB Ex. 1, 01:36:35-01:51:44 | 16:30-31:40). § 87(2)(b) also requests an ambulance numerous times, but the officers do not call one to the scene. *Id.* Notably, during this time PO Crawford does the one thing that § 87(2)(b) so persistently asked for, he calls his sergeant. (CCRB Ex. 1, 01:39:10-1:40:14 | 19:05-20:10).

CCRB Exhibit 2: Body-Worn Camera – PO Garcia

Officer Garcia's BWC is nearly identical to the BWC of PO Crawford. The only notable portion is the conversation between PO Crawford and § 87(2)(b) on the roadway because PO Garcia's BWC captures both of them on camera, thereby providing a clearer viewpoint of the interaction. (CCRB Ex. 2, 01:34:42-01:36:35 | 14:32-16:25). Once § 87(2)(b) has exited his vehicle, he comes to a stop several feet away, a full arm's length away, from PO Crawford. *Id.* § 87(2)(b) stands within the same area and maintains the same distance for the duration of their conversation. *Id.* Moreover, you can see him edging closer to the shoulder and away from the roadway until he's standing only just on the other side of the white line that denotes the shoulder, and he's still encased by both cars on either side. *Id.* Meanwhile PO Crawford maintains his place on the roadway, closer to the traffic. *Id.* The BWC shows Officer Crawford is about the same height and weight as § 87(2)(b) if not slightly bigger. *Id.* The BWC also shows that traffic is light, cars are passing by every so often, but they are mostly in the 2 lanes furthest away. *Id.* There is no indication that this interaction is obstructing traffic, or that § 87(2)(b) has intent to do so. *Id.* Nor does it show § 87(2)(b) engaging in violent or threatening behavior. *Id.*

CCRB Exhibit 3: C Summons for Disorderly Conduct (Summons Number: § 87(2)(b))

The C Summons Report for Summons Number § 87(2)(b) shows that § 87(2)(b) was charged for Disorderly Conduct under PL 240.20(1) only. CCRB Ex. 3. Officer Crawford, who is named as the author, in his narrative simply alleges § 87(2)(b) was "on a public highway in traffic" and "engaging in violent or threatening behavior," it does not provide any other basis and it does not articulate or specify what that behavior consists of in this case. *Id.* There is also no mention of § 87(2)(b) obstructing traffic in the roadway. *Id.*

CCRB Exhibit 4: Certificate of Disposition (Summons Number: § 87(2)(b))

The Certificate of Disposition for Summons Number § 87(2)(b) shows that the violation was dismissed as legally insufficient on § 87(2)(b) just a few weeks after this incident occurred. Thus, there's already been a finding by one court that there was insufficient basis for these charges – too insufficient to stand trial (hence a dismissal). CCRB Ex. 4.

CCRB Exhibit 5: Authorization to Tow

The Authorization to Tow form shows not only that § 87(2)(b) vehicle was towed and made difficult to retrieve by the addition in handwriting noting that § 87(2)(b) license was suspended. His license was not suspended.

Testimony

§ 87(2)(b) testified that on December 3, 2022, he was driving on the expressway late at night when he was pulled over by Officer Crawford. (Trial Transcript Pg. 23). He testified that at the time the traffic was calm, there were a few cars on the road, but the roads were clear, and it was well lit due to the traffic lights. *Id.* § 87(2)(b) understood he was being pulled over because the police vehicle behind him activated its lights. *Id.* Once the Officer activated his lights, signaling his intent to conduct a stop, § 87(2)(b) pulled over immediately, on the safest area of the roadway available to him – the shoulder on the right side of the highway, and he pulled over there because he was not directed otherwise and did not want the officer to think he was trying to flee. (Trial Transcript Pg. 24). § 87(2)(b) stated that both officers, Officer Crawford and Officer

Garcia, then approached the passenger side of his vehicle. *Id.* Officer Crawford requested § 87(2)(b) license and registration, § 87(2)(b) complied. (Trial Transcript Pg. 25). The officers returned to their vehicle where they wrote him a ticket, all while § 87(2)(b) remained in his vehicle waiting for them. *Id.* When the officers returned to § 87(2)(b) vehicle and handed him back his documents, he requested that they call a sergeant, multiple times, to the scene. *Id.* They refused. *Id.*

§ 87(2)(b) testified that he requested a sergeant to come to the scene because he believed the stop to be unlawful – the officers said he was speeding but he wanted to explain to sergeant that he was not speeding. (Trial Transcript Pg. 26). He stated that he believed that he was going the speed limit, because he'd seen Officer Crawford and Officer Garcia parked on the expressway a mile ahead of him while he was driving in advance of the stop, and therefore believed he continued to adhere to the speed limit. *Id.*

§ 87(2)(b) testified that Officer Crawford responded to his requests for a sergeant by denying it. (Trial Transcript Pg. 27). He stated that the Officer's repeated denial of his request, without explanation, made him feel uncomfortable, frustrated, aggravated, because he's a citizen that was pulled over asking for a sergeant. *Id.*

§ 87(2)(b) stated he got out of his vehicle to approach Officer Crawford because at that point the traffic stop was over, and he still wanted to try to resolve the issue on the scene not the precinct because precincts are busy places and supervisors are not free to speak to citizens. (Trial Transcript Pg. 28). He stated that when he got out of the vehicle, there was not a lot of traffic on the road – some, but not a lot – that no cars had to swerve to avoid him and he was not worried about other cars that were driving on the highway, because they were on the far left of the highway, and the cars that were approaching could see the police car with his lights activated. *Id.* § 87(2)(b) also testified that Officer Crawford did not ever issue any sort of command regarding the traffic. (Trial Transcript Pg. 69-70).

§ 87(2)(b) testified that during his conversation on the side of the road with the officers, Officer Crawford stated, "a sergeant is not coming out for this bullshit" and that if he wanted to see a sergeant he'd have to go back to the precinct. (Trial Transcript Pg. 29). § 87(2)(b) felt the officer was dismissive of his request, he felt upset and frustrated, like there was no accountability, and like there was a disconnect between law enforcement and the community. *Id.* He also testified that this made him want to hear directly from a sergeant that he wasn't coming out to the scene. (Trial Transcript Pg. 69).

§ 87(2)(b) was then arrested for disorderly conduct without understanding why and believing that his arrest was the consequence of simply asking for a sergeant to come on scene. (Trial Transcript Pg. 29-30). After his arrest, he asked for EMS over 8 times, but his requests were all ignored. (Trial Transcript Pg. 30-31). He also wasn't allowed to make arrangements for his vehicle to be moved from the highway, the officers instead towed it without offering alternatives. (Trial Transcript Pg. 31). Because his vehicle was a rental car and one of the officers had written that his license was suspended on the tow sheet, even though it was not, he was not able to get the car out of tow, the rental company had to retrieve it. (Trial Transcript Pg. 31, 69). The rental company charged § 87(2)(b) over a thousand dollars in fines as a result. (Trial Transcript Pg. 31). § 87(2)(b) stated that he had to go to court as a result of this arrest, but his summons was dismissed at his court date. (Trial Transcript Pg. 31-32). § 87(2)(b) also filed a civil matter that named Officer Crawford and had similar allegations – it was also settled in § 87(2)(b) favor. (Trial Transcript Pg. 32).

Officer Russell Crawford

Officer Crawford testified that on December 3, 2022, he was working the 44th Precinct as a highway safety officer. (Trial Transcript Pg. 74). He stated he was positioned on the southbound Major 20 Deegan Expressway, the right shoulder underneath the Cross Bronx Expressway overpass, enforcing speeding, when he pulled over § 87(2)(b) (Trial Transcript Pg. 75). He saw § 87(2)(b) traveling southbound about 1,000 feet away and made a visual estimation that he was driving 80 miles an hour, which he confirmed with his handheld laser, which gave a reading of 81 miles an hour. (Trial Transcript Pg. 76-77). Officer Crawford caught up to § 87(2)(b) within one exit and active his lights and sirens, upon which, § 87(2)(b) did pull over to the right shoulder of the roadway. (Trial Transcript Pg. 77-78). Officer Crawford acknowledged that it's not the widest shoulder, it's perhaps one car width, and § 87(2)(b) was close to the concrete median, there wasn't much room between the vehicle, himself when he approached the passenger side, and the wall. (Trial Transcript Pg. 78). He also clarified that only about three-quarters of § 87(2)(b) car was able to fit on the shoulder. (Trial Transcript Pg. 79). Officer Crawford's car was positioned behind his vehicle and also sticking out over the line, and his lights were activated. (Trial Transcript Pg. 79-80). Officer Crawford confirmed that traffic was light. (Trial Transcript Pg. 80). The Officer then approached § 87(2)(b) vehicles, requested his license and registration, which he received, and then went back to his vehicle to run the information and write a moving violation, which took about 10 minutes. (Trial Transcript Pg. 79-81).

Officer Crawford testified that once he went back to § 87(2)(b) vehicle and gave him his documents and summons, he got into the same back and forth conversation that § 87(2)(b) testified to – one where § 87(2)(b) repeatedly requests a sergeant to come to the scene, and Officer Crawford repeatedly tells him a sergeant is not coming, to go to the precinct, and the information for the precinct. (Trial Transcript Pg. 83). He testified that he believed the sergeant would be busy at the time and he didn't want to prolong time on the highway for fear of being hit by a car. (Trial Transcript Pg. 84). He stated that once he left § 87(2)(b) vehicle and turned to go back to his vehicle, he believed that the interaction was over. *Id.*

Officer Crawford then testified he did not make it back to his car because § 87(2)(b) exited his own vehicle and approached him and began repeating the same statements. *Id.* The Officer testified that he told § 87(2)(b) to get back in his vehicle and kept repeating that the “quickest way” and the “safest way” and “most efficient way” for him to speak to a supervisor would be for him to go to the precinct, but then he admitted on cross examination that he didn't actually use any of those words out loud when responding to § 87(2)(b) (Trial Transcript Pg. 86, 122).

The Officer then testified that he and § 87(2)(b) were mere feet away from each other, that § 87(2)(b) was not listening to him, that he was concerned what his next action would be, that the Officer didn't know if he wanted to engage in a fight and was concerned about traffic. (Trial Transcript Pg. 87). Officer Crawford said that after § 87(2)(b) multiple requests for a sergeant, saying he was not going to back up, and after telling him to get back into his car a number of times, § 87(2)(b) then told him, “You're going to have to arrest me.” *Id.* The Officer interpreted that as, “for what as if you want to go through this, like, the car stop's over.” *Id.* The Officer testified that only after he said “for what” did § 87(2)(b) say he was not backing up for nothing, which is in conflict with his BWC. (Trial Transcript Pg. 88). But in Officer Crawford's mind, this created a dangerous situation for him, his partner, and the other motorists that could potentially collide into the vehicles or them, such that it amounted to a disorderly conduct. *Id.* He

also then said that the reason for the disorderly conduct was actually because § 87(2)(b) wouldn't take what he was telling him for an answer and get back into his vehicle. *Id.* Officer Crawford arrested § 87(2)(b) did not resist. (Trial Transcript Pg. 89).

Officer Crawford testified that he used the phrase, "he's not coming out for this bullshit now" in reference to his sergeant to "ratchet it up a little bit" and "show him that's enough, I told you too many times," because § 87(2)(b) kept repeating himself. (Trial Transcript Pg. 97-98). The Officer stated he was hoping to achieve an end to the interaction and he did not believe § 87(2)(b) was offended by his use of the word. (Trial Transcript Pg. 98).

ARGUMENT

The CCRB disagrees with the Tribunal's finding Officer Crawford is not guilty of Specification One, Two, and Three, respectively. (Tribunal Decision 10, 12).

I. Officer Crawford is Guilty of Specification (1) in that he spoke discourteously to § 87(2)(b)

The CCRB proved by a preponderance of the evidence that Officer Crawford violated Patrol Guide Procedure 200-02 and Administrative Guide 304-06.

Patrol Guide Procedure 200-02 states, in pertinent part, that: police officers must respect the dignity of each individual and render services with courtesy and civility.

Administrative Guide Procedure 304-06(¶1) prohibits "engaging in conduct prejudicial to good order, efficiency, or discipline of the Department."

According to the DCT decision in Disciplinary Case No. 2017-17005, while officers may be excused in their use of discourteous language during stressful situations, this permission is strictly limited to scenes that are so chaotic that the duty of courteousness and professional behavior are overridden by the immediate need to maintain order. In the cited DCT decision, the respondent was found guilty for using the phrase, "shut the fuck up," in the middle of affecting an arrest involving use of force, towards a bystander unrelated to the arrest. *Id.* The DCT found this language to be directed toward a person who was not interfering with police action but simply complaining, and thus ruled this scene was not so chaotic to override the duty of courteousness. *Id.*

Here, PO Crawford stated that the purpose of saying the word "bullshit" was to "ratchet it up a little bit" and "show him that's enough, I told you too many times," because § 87(2)(b) kept repeating himself. (Trial Transcript Pg. 97-98). He further confused his rationale by testifying that this phrasing was "verbal judo" to de-escalate the situation, but his intent was to "elevate" the situation. (Trial Transcript Pg. 101-102).

The officer's stated rationale is not only in conflict with itself, but also in conflict with logic. In a situation where he's dealing with a civilian who is upset, who is asking for a supervisor, and who is feeling unheard and dismissed, to call that person's concerns "bullshit" and expect that to calm him down or to de-escalate, or to assume he wouldn't take offense, is absurd.

It's evident from BWC and the officer's testimony, that the use of the word "bullshit," was prompted by § 87(2)(b) unrelenting request for a Sgt, which tested Officer Crawford's patience, as he testified, he was repeating himself over and over again, leading to this display of frustration – the true reason for the profanity. Now while it's understandable that such a

redundant and fruitless conversation would be frustrating, Officer Crawford is still required to conduct himself professionally.

Additionally, as visible from PO Garcia's BWC, at the time this statement is made, § 87(2)(b) is standing right next to the white line demarcating the shoulder, encased by both vehicles and away from traffic. (CCRB Ex. 2). It is Officer Crawford who is standing further in the roadway near traffic. *Id.* PO Crawford could have moved off the roadway and on to the shoulder at any time or inched closer to the shoulder and away from the roadway like § 87(2)(b) did, but he didn't. So, any stress related to concerns about traffic could have been alleviated if that was truly the issue. Thus, the situation was not so chaotic as to override the duty of courteousness.

II. Officer Crawford is Guilty of Specification Two (2) and Specification Three (3) in that he conducted a retaliatory and unlawful arrest of § 87(2)(b)

The second and third charges, Retaliatory and Unlawful Arrest, respectively, are intertwined and can be addressed simultaneously.

The CCRB proved by a preponderance of the evidence that Officer Crawford violated Patrol Guide Procedure 208-01 and Administrative Guide 304-06.

Administrative Guide Procedure 304-06(¶1) prohibits "engaging in conduct prejudicial to good order, efficiency, or discipline of the Department."

Patrol Guide Procedure 208-01(¶3) mandates that an arrest without a warrant shall require an officer to have reasonable cause to believe the offense was committed in his presence.

In this case, the offense alleged to have been committed is a disorderly conduct.

Disorderly Conduct, as defined by Penal Law Section 240.20, requires that "a person, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof," commits one of seven specified acts. The conduct § 87(2)(b) was charged with, denoted under subsection (1), is "to engage in fighting or in violent, tumultuous or threatening behavior." PL § 240.20(1). Disorderly conduct is a violation.

In People v. Zuckerberg, 44 Misc. 3d 66 (2d Dept 2014), the court held that where the enumerated behavior charged is directed purely at officers and does not cause distress to the public, or recklessly cause such a risk, it does not amount to disorderly conduct. In Zuckerberg, the arresting officer testified that only he and the desk sergeant were present when the civilian came to the precinct and started screaming. *Id.* He did not testify that members of the public or other police officers were present. *Id.* The court found there was no evidence the civilian intended to cause public inconvenience, annoyance or alarm, or that he recklessly created a risk of such, therefore was not a disorderly conduct. *Id.*

This case is also missing the element of intent to cause public inconvenience, annoyance, or alarm, or recklessly creating such a risk. Neither the testimony nor the BWC provide any evidence that during the course of this encounter any vehicles stopped or any other civilians arrived at or were affected by the scene, at least not any more than they would be for any given traffic stop that occurs on the highway, which as PO Crawford testified is what he was there to do. Evidence instead shows: traffic was light, as PO Crawford testified, most of the vehicles that passed were in the furthest two lanes of traffic, no vehicles had to swerve to avoid the officers or § 87(2)(b) or their vehicles, and the lights on the police vehicle were flashing the whole time, as § 87(2)(b) testified. (CCRB Ex. 1-2; Trial Transcript Pg. 28, 80). § 87(2)(b) stood close to the shoulder, and as PO Crawford testified, § 87(2)(b) wasn't flagging down any cars or trying to get their attention, didn't walk into any other lanes or drift further into the roadway, and no other

vehicles stopped nor motorists exited their vehicles. (CCRB Ex. 2; Trial Transcript Pg. 111). Furthermore, at no point during the interaction does either officer verbalize that § 87(2)(b) was obstructing vehicular traffic or recklessly creating a risk of disrupting traffic, and it is not mentioned anywhere in the summons issued to § 87(2)(b) (CCRB Ex. 1-3). Thus, § 87(2)(b) presence on the side of the road was not of significant enough concern to the officers to include the disorderly conduct subsection for obstructing vehicular traffic or include those facts in the narrative. Therefore, § 87(2)(b) did not obstruct vehicular or pedestrian traffic, nor did he act with intent to create or recklessly create a public inconvenience on the roadway.

In People v. Gingello, 67 Misc. 2d 224 (City Ct. 1971), the passenger of a vehicle, which had been stopped late at night for a traffic infraction, was arrested for disorderly conduct. Initially, officers had placed only the driver under arrest for the traffic violations. *Id.* However, then the passenger exited the vehicle and loudly stated to the police officer, "you have no right arresting my friend." *Id.* The officer requested the passenger to get out of the street and either go up on the sidewalk or return to the vehicle, but he did not, instead just repeating the statement several times while the officer was in the process of arresting the driver and calling a tow. *Id.* The passenger continued to ignore the officer's orders, refused to leave, and stated to the officer, "you are an asshole." *Id.* As a result, the officer arrested him, citing disorderly conduct, subsection (1). The court found that there was insufficient evidence of fighting or violent, tumultuous, or threatening behavior and dismissed the charge. *Id.*

Gingello is extremely similar to the case at hand. § 87(2)(b) like the passenger, exited the vehicle, continued to repeat himself, and refused to return to the vehicle or leave the scene. However, unlike in Gingello, here Officer Crawford, as he testified, did not even issue any orders for § 87(2)(b) to get out of the roadway or onto the shoulder. (Trial Transcript Pg. 80).

Additionally, BWC, as confirmed by PO Crawford's testimony, shows § 87(2)(b) did not verbally threaten Officer Crawford, he didn't say he would hit him or he would fight him, he didn't take a swing or a kick at Officer Crawford, he wasn't doing anything with his hands, other than use them conversationally and they were visible the whole time. (CCRB Ex. 1-2; Trial Transcript Pg. 112-113). Officer Crawford is slightly taller and weighs more, he was backed by his partner, while § 87(2)(b) was alone, and Officer Crawford carries a gun while § 87(2)(b) is unarmed – § 87(2)(b) did not, purely based on physicality, pose a threat to Officer Crawford. (Trial Transcript Pg. 111-113; See also CCRB Ex. 2). Thus, like in Gingello, Officer Crawford arrested § 87(2)(b) for being argumentative, which does not provide reasonable cause to believe that § 87(2)(b) engaged in fighting or violent, tumultuous, or threatening behavior.

Officer Crawford's arrest of § 87(2)(b) is not only unlawful but also retaliatory. According to the NYPD Disciplinary Matrix, an Enforcement Action involving Abuse of Discretion or Authority includes an arrest or summons for which there is a lawful basis, however, but for the officer's improper motive, enforcement action would not have been taken. So even if this arrest were found to be lawful, it can still be retaliatory, particularly in an instance such as this where an arrest for a violation, which is discretionary, is made. Officer Crawford's BWC and testimony shows that § 87(2)(b) was being incessant and demanding; that he refused to get back in his vehicle or back down; that Officer Crawford was getting frustrated – you can hear his exasperation; and when § 87(2)(b) challenged Officer Crawford to lock him up, Officer Crawford arrested him to assert his authority and end the conversation. BWC and testimony shows that prior to § 87(2)(b) statement, Officer Crawford showed no inclination to arrest § 87(2)(b) he didn't make any move to do so or say anything regarding a possible arrest, and after § 87(2)(b) told him to lock him up the first time, Officer Crawford responded, "for what?"

(CCRB Ex. 1-2, Trial Transcript Pg. 113). But when § 87(2)(b) who believed he had done nothing unlawful, told the Officer to go ahead and lock him up a second time, Officer Crawford did not hesitate before placing § 87(2)(b) in handcuffs. (CCRB Ex. 1-2; Trial Transcript Pg. 113-114). As Officer Crawford testified, there were no intervening events between § 87(2)(b) second statement to lock him up and PO Crawford's arrest of § 87(2)(b) (Trial Transcript Pg. 113-114; See also CCRB Ex. 1-2). § 87(2)(b) challenged PO Crawford's authority, and PO Crawford reacted by arresting § 87(2)(b) when he had not displayed any prior intention of doing so.

Officer Crawford clearly had an improper motive for making this arrest. It's a fair assessment to say § 87(2)(b) was being difficult and frustrating, so while the Officer's feelings are understandable, his actions are inexcusable. If he truly had wanted to end this conversation, he had numerous opportunities to walk away, he even made a move to leave three times without following through. There was no need to prolong the interaction, the vehicle stop was long over. As the one with the badge, the onus was on him to de-escalate the situation and retreat. Instead, Officer Crawford chose to stay and repeatedly engage and ultimately make an unlawful and retaliatory arrest that resulted in harmful consequences for § 87(2)(b).

CONCLUSION

For the above stated reasons, the evidence at trial proves by a preponderance that the CCRB established that Officer Russell Crawford violated Patrol Guide Section 200-02, 208-01 and Administrative Guide Section 304-06. Under the NYPD Disciplinary Matrix, Specification One (1), Discourtesy, carries a presumptive penalty is five (5) days, and Specifications Two (2) and Three (3), Enforcement Action involving Abuse of Discretion or Authority, carry a Presumptive Penalty of 20 Days. Based on the arguments presented above, CCRB respectfully requested that you reject ADCT Adler's findings, and instead find the Respondent GUILTY of Specification One (1), Two (2), and Three (3), and accept CCRB's recommended penalty of the forfeiture of Twenty (20) vacation days.

Respectfully submitted,

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NYC CIVILIAN COMPLAINT REVIEW BOARD

ADMINISTRATIVE PROSECUTION UNIT